
**ORDINARY MEETING OF GRIFFITH CITY COUNCIL
HELD IN GRIFFITH CITY COUNCIL CHAMBERS ON
TUESDAY, 26 NOVEMBER 2019 COMMENCING AT 7:00 PM**

PRESENT

The Mayor, John Dal Broi in the Chair; Councillors, Glen Andreazza, Simon Croce, Doug Curran, Deb Longhurst, Eddy Mardon, Rina Mercuri, Anne Napoli, Brian Simpson, Christine Stead and Dino Zappacosta

STAFF

General Manager, Brett Stonestreet, Director Economic & Organisational Development, Shireen Donaldson, Director Utilities, Graham Gordon, Director Sustainable Development, Phil Harding, Director Infrastructure & Operations, Phil King, Director Business, Cultural & Financial Services, Max Turner and Minute Taker, Naomi Brugger

MEDIA

Calhan Behrendt, The Area News

1 COUNCIL PRAYER AND ACKNOWLEDGEMENT OF COUNTRY

The Meeting opened with Councillor Glen Andreazza reading the Council prayer and the Acknowledgement of Country.

2 APOLOGIES AND REQUESTS FOR LEAVE OF ABSENCE

19/357

RESOLVED on the motion of Councillors Doug Curran and Glen Andreazza that an apology be received from Councillor Mike Neville and a leave of absence granted.

3 CONFIRMATION OF MINUTES

19/358

RESOLVED on the motion of Councillors Dino Zappacosta and Glen Andreazza that the minutes of the Ordinary Meeting of Council held in Griffith City Council Chambers on 12 November 2019, having first been circulated amongst all members of Council, be confirmed.

4 BUSINESS ARISING**NOTICE OF MOTION – COUNCILLOR NAPOLI**

Councillor Napoli enquired if anyone had requested an MLAK key following the Notice of Motion with Director Economic and Organisational Development, Ms Shireen Donaldson advising the Notice of Motion was publicised through social media and local media with one resident from Murrami applying for a key. Ms Donaldson added she has requested the locksmith to advise Council of any applications.

5 DECLARATIONS OF INTEREST

Pecuniary Interests

Councillors making a pecuniary interest declaration are required to leave the meeting during consideration of the matter and not return until the matter is resolved.

Councillor Eddie Mardon

Outstanding Action Report - Water-Volumetric Contribution Policy

Reason – Councillor Mardon was a director of companies which make seek compensation.

Councillor Anne Napoli

Floodplain Management Committee Minutes – CL01 Yoogali McCormack Road Levee and Culvert Upgrade

Reason – Councillor Napoli owns a property on McCormack Road.

Councillor Anne Napoli

Outstanding Action Report - Water-Volumetric Contribution Policy

Reason – Councillor Napoli and her partner may have contributed to the policy as developers.

Significant Non-Pecuniary Interests

Councillors making a significant non-pecuniary interest declaration are required to leave the meeting during consideration of the matter and not return until the matter is resolved.

Councillor Deb Longhurst

CC02 through to CC04

Reason – Councillor Longhurst is mentioned within the reports.

Councillor Rina Mercuri

CC02 through to CC04

Reason – Councillor Mercuri is mentioned within the reports.

Councillor Anne Napoli

CC02 through to CC04

Reason – Councillor Napoli is mentioned within the reports.

Less Than Significant Non-Pecuniary Interests

Councillors making a less than significant non-pecuniary interest declaration may stay in the meeting and participate in the debate and vote on the matter.

Councillor Rina Mercuri

CC01 Licence over Lot 4 DP 1067284

Reason – Councillor Mercuri has received an email from the licensee.

Councillor Christine Stead

CL03 Amendment to Draft Housing Strategy

Reason – Councillor Stead has spoken with several people who have completed submissions for the Strategy.

6 PRESENTATIONS

Nil

7 MAYORAL MINUTES

Nil

8 GENERAL MANAGER'S REPORT

CL01 ADOPTION OF 2018/19 ANNUAL FINANCIAL STATEMENTS & AUDITORS REPORT

19/359

RESOLVED on the motion of Councillors Doug Curran and Simon Croce that the meeting suspend standing orders to allow Ms Danielle MacKenzie (representing Crowe Australasia) to address Council, the time being 7.08pm.

19/360

RESOLVED on the motion of Councillors Doug Curran and Simon Croce that the meeting resume standing orders, the time being 7.13pm.

19/361

RESOLVED on the motion of Councillors Glen Andreazza and Doug Curran that:

- (a) Council adopt the 2018/19 Annual Financial Reports and associated Auditor's Reports.
- (b) Council express its appreciation to Ms Danielle MacKenzie (Associate Partner at Crowe Australasia), Crowe staff and Council staff involved in the preparation of the Reports.
- (c) Council resolve to transfer the following amounts to the nominated Reserves:
 - i. \$970K to the Waste Fund Reserve, this being the surplus generated by that fund after meeting all operational and capital costs for the 2018/19 year.
 - ii. \$50K to a new SVPCHG Sinking Fund Reserve, this being the balance of contributions received from St Vincent's Private Community Hospital Griffith for future capital maintenance of the facility, and
 - iii. Transfer \$482K to the Lake Wyangan Redevelopment Reserve to assist in funding the Lake Upgrade with the funds being the net surplus made from water trading in 2018/19.

CL02 CODE OF CONDUCT COMPLAINTS - ANNUAL RETURN (1 SEPTEMBER 2018 TO 31 AUGUST 2019)

19/362

RESOLVED on the motion of Councillors Doug Curran and Glen Andreazza that Council note the Code of Conduct Complaints Report for the period between 1 September 2018 - 31 August 2019.

CL03 AMENDMENT OF DRAFT HOUSING STRATEGY AFTER EXHIBITION PERIOD

19/363

RESOLVED on the motion of Councillors Dino Zappacosta and Simon Croce that:

- (a) Council endorse the Draft Housing Strategy as prepared by Judith Stubbs & Associates as is;
- (b) Council adopt recommended changes to the Draft Housing Strategy.

CL04 RENEWAL OF LICENCE AGREEMENT - AREAS 11 & 12 DALTON PARK - BERNARD FRANCIS NEWELL

19/364

RESOLVED on the motion of Councillors Doug Curran and Simon Croce that:

- (a) Council enter into a licence agreement with Bernard Francis Newell over Areas 11 & 12 Dalton Park for a term of 5 years commencing 1 October 2019.
- (b) Council advertise its intention to enter into a licence agreement with Bernard Francis Newell over Areas 11 & 12 Dalton Park (part Lot 562 DP 751743) for a period of 28 days. Should any submissions be received a report will be presented to Council for consideration.
- (c) Should no submissions be received, Council will enter into the licence agreement with Bernard Francis Newell.
- (d) Bernard Francis Newell pay all applicable costs and charges associated with the preparation of the licence agreement together with Council's Administration Fee of \$450.
- (e) The licence agreement be charged in accordance with Council's adopted Revenue Policy, currently \$612 pa per Area for the 2019/2020 financial year, in addition to rates and charges.
- (f) Council authorise the Mayor and General Manager to execute the licence agreement on behalf of Council under the Common Seal.

CL05 IN-PRINCIPLE SUPPORT - WESTERN RIVERINA COMMUNITY SCHOOL - LOT 1 SECTION 127 DP 758476 - KOOKORA STREET PARK

19/365

RESOLVED on the motion of Councillors Rina Mercuri and Anne Napoli that:

- (a) Council provide 'in-principle' support to Western Riverina Community College to develop a school on Crown Reserve 81439, Lot 1 Section 127 DP 758476.
- (b) Western Riverina Community College prepare a Draft Plan of Management for Crown Reserve 81439, Lot 1 Section 127 DP 758476.
- (c) Western Riverina Community College pay for all costs associated with the preparation of the Draft Plan of Management for Crown Reserve 81439, Lot 1 Section 127 DP 758476.
- (d) Council pay all costs associated with the advertising of the Draft Plan of Management and Public Hearing for Crown Reserve 81439, Lot 1 Section 127 DP 758476.
- (e) The Mayor and General Manager be authorised to sign and seal all documents if so required.

CL06 FIRST QUARTER PERFORMANCE REPORT 2019/20 - BUDGET REVIEW AND OPERATIONAL PLAN

19/366

RESOLVED on the motion of Councillors Simon Croce and Glen Andreazza that:

- (a) Council note the variations to the 2019/20 original budget for the quarter ended 30 September 2019 as presented in this report.
- (b) The Financial Review for the quarter ended 30 September 2019 be adopted.
- (c) Council adopt the 30 September 2019 Operational Plan Review advising the extent to which the Operational Plan Actions (Performance Indicators) have been achieved.
- (d) Council endorse minor amendments to the Organisational Structure as per this report.

9 INFORMATION REPORTS

CL07 GRIFFITH CITY COUNCIL ANNUAL REPORT 2018/19

19/367

RESOLVED on the motion of Councillors Brian Simpson and Rina Mercuri that Council receive and note the Annual Report 2018/19.

CL08 INVESTMENTS AT 31 JULY, 31 AUGUST AND 30 SEPTEMBER 2019

19/368

RESOLVED on the motion of Councillors Simon Croce and Glen Andreazza that the report be noted by Council.

CL09 PETITION RECEIVED 14 NOVEMBER 2019

19/369

RESOLVED on the motion of Councillors Glen Andreazza and Christine Stead that Council note the petition as included in the Business Paper and the matter be referred to Workshop scheduled 17 December 2019 for discussion.

10 ADOPTION OF COMMITTEE MINUTES

Councillor Anne Napoli left the meeting having declared a pecuniary, the time being 7:25pm.

MINUTES OF THE FLOODPLAIN MANAGEMENT COMMITTEE MEETING HELD ON 31 OCTOBER 2019

19/370

RESOLVED on the motion of Councillors Dino Zappacosta and Glen Andreazza that the recommendations as detailed in the Minutes of the Floodplain Management Committee meeting held on 31 October 2019 be adopted.

Councillor Anne Napoli returned to the meeting at 7:26pm.

MINUTES OF THE AUDIT, RISK AND IMPROVEMENT COMMITTEE MEETING HELD ON 31 OCTOBER 2019

19/371

RESOLVED on the motion of Councillors Dino Zappacosta and Christine Stead that the recommendations as detailed in the Minutes of the Audit, Risk and Improvement Committee meeting held on 31 October 2019 be adopted.

MINUTES OF THE TRAFFIC COMMITTEE MEETING HELD ON 12 NOVEMBER 2019

19/372

RESOLVED on the motion of Councillors Doug Curran and Rina Mercuri that the recommendations as detailed in the Minutes of the Traffic Committee meeting held on 12 November 2019 be adopted.

11 BUSINESS WITH NOTICE – RESCISSION MOTIONS

Nil

12 BUSINESS WITH NOTICE – OTHER MOTIONS

NOTICE OF MOTION - COUNCILLOR ZAPPACOSTA

19/373

RESOLVED on the motion of Councillors Dino Zappacosta and Glen Andreazza that the meeting suspend standing orders to allow Ms Carmel La Rocca representing the Community Development Council of Griffith to address Council, the time being 7.29pm.

19/374

RESOLVED on the motion of Councillors Dino Zappacosta and Glen Andreazza that the meeting resume standing orders, the time being 7.39pm.

19/375

RESOLVED on the motion of Councillors Dino Zappacosta and Glen Andreazza that: Council consider the two following issues raised by the Community and Development Council of Griffith Inc, taking note of the comments from the Senior Management Team:

- (i) Semi-trailer and truck parking in Watkins Avenue
- (ii) Pedestrian and mobility access from Griffith Retirement Village via Coolah Street to Banna Avenue.

Councillors Eddy Mardon and Anne Napoli left the meeting having declared a pecuniary interest, the time being 7:40pm.

13 OUTSTANDING ACTION REPORT

OUTSTANDING ACTION REPORT

19/376

RESOLVED on the motion of Councillors Simon Croce and Christine Stead that the report be noted.

Councillors Eddy Mardon and Anne Napoli returned to the meeting at 7:41pm.

14 MATTERS TO BE DEALT WITH BY CLOSED COUNCIL

In accordance with the Local Government Act 1993 and the Local Government (General) Regulation 2005, in the opinion of the General Manager, the following business is of a kind as referred to in Section 10A(2) of the Act, and should be dealt with in a part of the meeting closed to the media and public.

Set out below is Section 10A(2) of the Local Government Act 1993 in relation to matters which can be dealt with in the closed part of a meeting.

The matters and information are the following:

- (a) personnel matters concerning particular individuals (other than councillors)**
- (b) the personal hardship of any resident or ratepayer**
- (c) information that would, if disclosed, confer a commercial advantage on a person with whom the council is conducting (or proposes to conduct) business**
- (d) commercial information of a confidential nature that would, if disclosed:**
 - (i) prejudice the commercial position of the person who supplied it, or**
 - (ii) confer a commercial advantage on a competitor of the Council, or**
 - (iii) reveal a trade secret**
- (e) information that would, if disclosed, prejudice the maintenance of law**
- (f) matters affecting the security of the Council, Councillors, Council staff or Council property**
- (g) advice concerning litigation, or advice that would otherwise be privileged from production in legal proceedings on the grounds of legal professional privilege**
- (h) information concerning the nature and location of a place or an item of Aboriginal significance on community land.**
- (i) alleged contraventions of any code of conduct requirements applicable under section 440 of the Local Government Act 1993.**

19/377

RESOLVED on the motion of Councillors Christine Stead and Glen Andreazza that:

- (a) Council resolve to go into closed council to consider business identified.**
- (b) Pursuant to section 10A(1)-(3) of the Local Government Act 1993, the media and public be excluded from the meeting on the basis that the business to be considered is classified confidential under the provision of section [10A(2)] as outlined above.**
- (c) The correspondence and reports relevant to the subject business be withheld from access to the media and public as required by section 11(2) of the Local Government Act 1993.**

Council resolved that members of the press and public be excluded from the meeting during consideration of the items listed below, and that discussion of the report in open Council would be contrary to the public interest.

CC01 LICENCE OVER LOT 4 DP 1067284, LAKE WYANGAN

Reason: Personnel Matters 10A(2)(a)

CC02 CODE OF CONDUCT COMPLAINT 1

Reason: Code of Conduct Contravention 10A(2)(i)

CC03 CODE OF CONDUCT COMPLAINT 2

Reason: Code of Conduct Contravention 10A(2)(i)

CC04 CODE OF CONDUCT COMPLAINT 3

Reason: Code of Conduct Contravention 10A(2)(i)

Council closed its meeting at 7.41pm. The public and media left the Chamber.

REVERSION TO OPEN COUNCIL

19/378

RESOLVED on the motion of Councillors Doug Curran and Brian Simpson that Open Council be resumed.

Open Council resumed at 8.17pm.

Upon resuming Open Council the Mayor reported that the following resolutions had been made in Closed Council:

MATTERS DEALT WITH IN CLOSED COUNCIL

CC01 LICENCE OVER LOT 4 DP 1067284, LAKE WYANGAN

Councillors Anne Napoli and Rina Mercuri moved the following **MOTION** that Council allow the Licensee to continue to licence the citrus farm for the remainder of the term subject to payment of annual fees when due and the removal of the house to the satisfaction of Council, with the option of a three (3) year option as per the existing lease agreement.

The **MOTION** was **PUT** and **LOST**.

19/379

RESOLVED on the motion of Councillors Eddy Mardon and Doug Curran that Council Allow the Licensee to continue to licence the citrus farm subject to:

- (a) Payment of annual fees when due and the removal of the house to the satisfaction of Council, with the current lease terminated effective December 31, 2020
- (b) Clean-up of the farm to be carried out prior to May 31, 2020.

Councillors Rina Mercuri, Deb Longhurst and Anne Napoli left the meeting having declared a Significant Non-Pecuniary Interest, the time being 8:10 pm.

CC02 CODE OF CONDUCT COMPLAINT 1

CC03 CODE OF CONDUCT COMPLAINT 2

CC04 CODE OF CONDUCT COMPLAINT 3

19/380

RESOLVED on the motion of Councillor Doug Curran that CC02, CC03 and CC04 LAY ON THE TABLE.

Councillors Rina Mercuri, Anne Napoli and Deb Longhurst returned to the meeting, the time being 8:17pm.

There being no further business the meeting terminated at 8.18pm.

Confirmed:
CHAIRPERSON